

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. RG PC DLVBL

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE
LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF
COLORADO OF ROGER A. HUGHES, LPC, LICENSE NO. 2701,

Respondent.

IT IS HEREBY STIPULATED by and between the Colorado State Board of
Licensed Professional Counselor Examiners ("Board") and Roger A. Hughes, ("Re-
spondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this stipulation.
2. Respondent was licensed as a professional counselor in the State of Colorado at all relevant times herein and is now so licensed.
3. Respondent admits the following:
 - a. Respondent began seeing a client identified as RH in May 1997 and continued to treat RH until March 27, 2000.
 - b. Respondent began treating RH's wife, identified as JH, individually in 1999.
 - c. Respondent treated RH and JH as a couple from March 1998 through November 1998 and from June 1999 through February 2000.
 - d. At the time of termination with JH in February 2000, JH told Respondent that she was considering opening a clinic and asked Respondent if he would be interested in considering being involved in her clinic. Respondent agreed to talk about it with JH after six months if JH was still interested.

e. In September 2000, Respondent moved his practice and began renting space in JH's clinic.

f. In November 2000, RH told Respondent that he and JH had decided to divorce and asked to meet with Respondent.

g. Respondent told RH that if they met, Respondent would be limited in what he could do, since they had entered a business relationship and were friends.

h. RH and JH had questions about the divorce process they felt Respondent could help them with and Respondent agreed to share information with them.

i. In November and December 2000, Respondent provided guidance regarding when and how to tell the children of the planned divorce and advised RH not to get involved with a new person until his divorce was final.

j. Respondent became involved with JH after the couple had filed for divorce, but before the divorce was final.

k. Respondent became sexually intimate with JH in February 2001.

4. By virtue of the admissions in paragraph 3 above, Respondent admits, and the Board hereby finds, that respondent violated § 12-43-222(1) (g) and (i), C.R.S.

5. The statutory authority of the Board is as follows:

12-43-222. Prohibited activities – related provisions. (1) A person licensed, registered, or regulated under part 3, 4, 5, 6, or 7 of this article is in violation of this article if such person:

(g) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which such person practices. A certified copy of a malpractice judgment of a court of competent jurisdiction shall be conclusive evidence of such act or omission, but evidence of such act or omission shall not be limited to a malpractice judgment.

(i) Has maintained relationships with clients that are likely to impair such person's professional judgment or increase the risk of client exploitation, such as treating employees, supervisees, close colleagues, or relatives;

6. Respondent hereby relinquishes the license and the right to practice as a licensed professional counselor in the State of Colorado and requests the Board to accept said relinquishments. Such relinquishment shall have full force and effect as a revocation ordered by the Board. Respondent tenders the license simultaneously with execution of this document. Following relinquishment of the license, Respondent shall not perform any act requiring a license to practice.

7. Respondent understands that if Respondent applies for licensure at any future time, respondent will be required to comply with all criteria for initial licensure which exist at the time of the application.

8. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing pursuant to § 12-43-224, C.R.S. (2004) concerning the facts admitted in paragraph 3 above, and hereby waives those rights and requests that this Stipulation and Order be accepted by the Board with the same force and effect as an Order entered as a result of a formal disciplinary hearing.

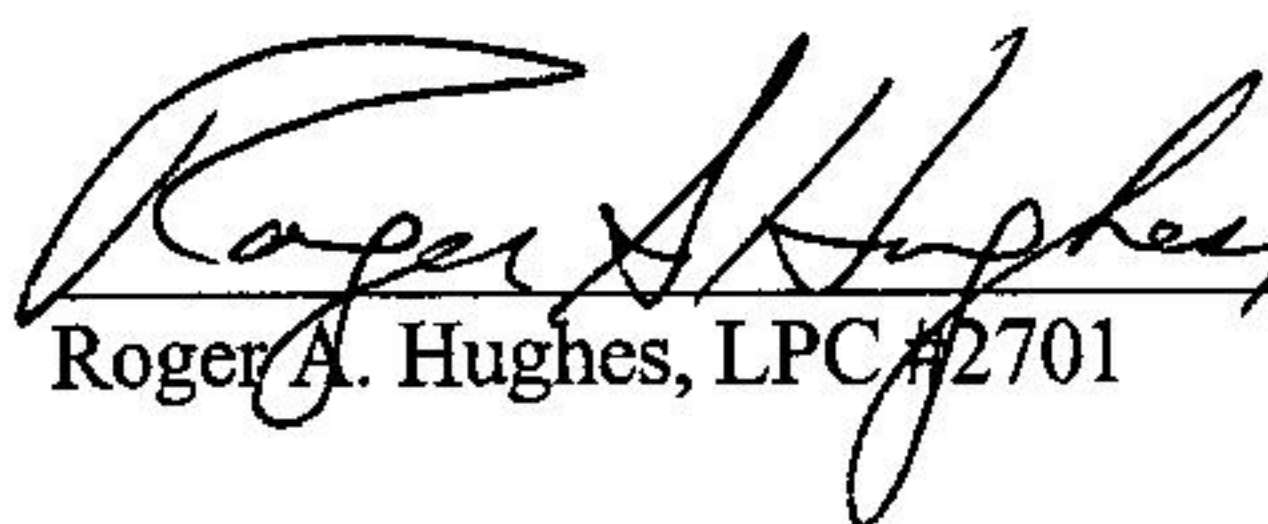
9. This Stipulation and Order is entered into by Respondent voluntarily and without coercion and after an opportunity to consult with counsel and with full understanding of the legal consequences of this Stipulation and Order and the right to formal hearing on all matters herein.

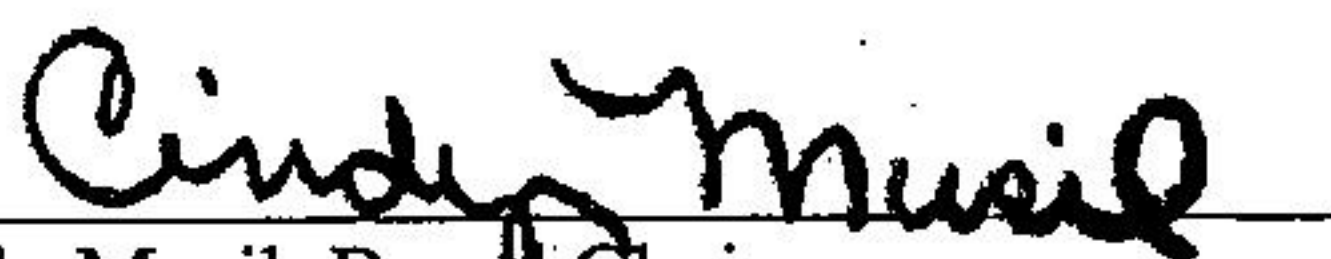
10. This Stipulation and Order shall become an Order of the Board when accepted by the Board and signed by an authorized Board representative.

11. This Stipulation and Order is a public record in the custody of the Board at all times.

RESPONDENT

**COLORADO STATE BOARD OF
LICENSED PROFESSIONAL
COUNSELOR EXAMINERS**

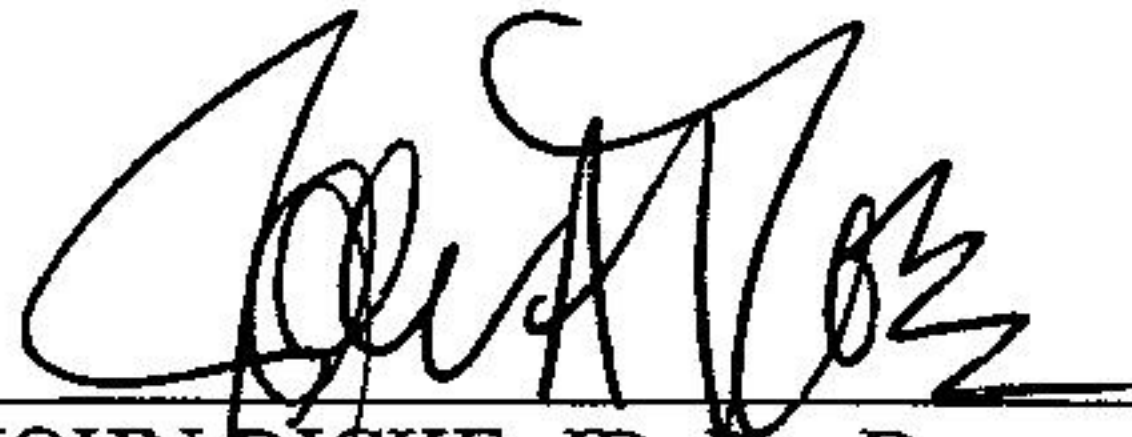

Roger A. Hughes, LPC #2701


Cindy Musil, Board Chair

Effective Date: This 28th day of
July 2005.

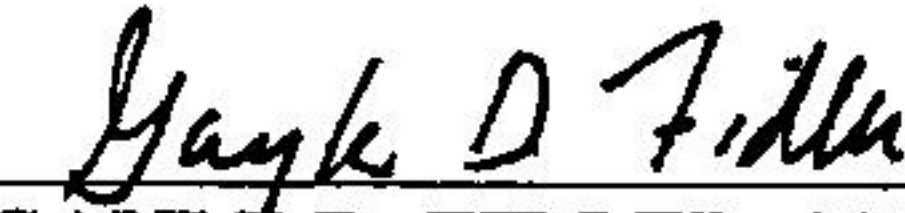
APPROVED AS TO FORM

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